

THE UNIVERSITY GRANTS COMMISSION ACT, 1956

(As modified up to the 20th December, 1985)

AND RULES & REGULATIONS UNDER THE ACT



**UNIVERSITY GRANTS COMMISSION
NEW DELHI**

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NEW DELHI**

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UGC Act 1956 as Modified upto the 20th December 1985 and Rules and Regulations under the Act

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**THE
UNIVERSITY GRANTS COMMISSION
ACT, 1956**

(3 of 1956)

(As modified up to the 20th December, 1985)

**UNIVERSITY GRANTS COMMISSION
NEW DELHI**

This Act has been amended by the University Grants Commission (Amendment) Act, 1972 (No. 33 of 1972).

This Act has been further amended by (i) The University Grants Commission (Amendment) Act,¹ 1984 (No. 59 of 1984) and (ii) The University Grants Commission (Amendment) Act,² 1985 (No. 70 of 1985).

LIST OF ABBREVIATIONS USED

Ins.	...	for Inserted
P.	...	" Page
Pt.	...	" Part
S.	...	" Section
Sch.	...	" Schedule
Sec.	...	" Section
Subs.	...	" Substituted
w.e.f.	...	" with effect from

-
1. See The Gazette of India, Extraordinary-Part II - Section 1 - No. 72-C dated August 31, 1984
 2. See The Gazette of India, Extraordinary-Part II - Section 1 - No. 88 dated December 23, 1985

THE UNIVERSITY GRANTS COMMISSION ACT, 1956

ARRANGEMENT OF SECTIONS

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THE UNIVERSITY GRANTS COMMISSION ACT, 1956

(3 of 1956)

[3rd March, 1956]

An Act to make provision for the co-ordination and determination of standards in Universities and for that purpose, to establish a University Grants Commission.

BE it enacted by Parliament in the Seventh Year of the Republic of India as follows:-

CHAPTER I

PRELIMINARY

- | | |
|--|--|
| <p>1. (1) This Act may be called the University Grants Commission Act, 1956.</p> <p>(2) It shall come into force on such date¹ as the Central Government may, by notification in the Official Gazette, appoint.</p> | <p>Short title and commencement</p> |
| <p>2. In this Act, unless the context otherwise requires-</p> <p>(a) "Commission" means the University Grants Commission established under section 4;</p> <p>(b) "executive authority" in relation to a University, means the chief executive authority of the University (by whatever name called) in which the general administration of the University is vested;</p> <p>(c) "Fund" means the Fund of the University Grants Commission constituted under section 16;</p> <p>(d) "member" means a member of the University Grants Commission and includes the Chairman² (and Vice-Chairman);</p> <p>(e) "prescribed" means prescribed by rules made under this Act;</p> | <p>Definitions</p> |

1. 5th November, 1956, *vide* notification No. S.R.O. 2608, dated the 1st November, 1956, see Gazette of India, 1956, Pt. II, Sec. 3, p.1882.
This Act has been extended to Pondicherry by Act. 26 of 1968, s. 3 and Sch. I.

2. Ins. by Act 33 of 1972, s. 2 (w.e.f. 17-6-1972).

(Chapter I - Preliminary)

- (f) "University" means a University established or incorporated by or under a Central Act, a Provincial Act or a State Act, and includes any such institution as may, in consultation with the University concerned, be recognised by the Commission in accordance with the regulations made in this behalf under this Act.

Application of Act to institutions for higher studies other than Universities

3. The Central Government may, on the advice of the Commission, declare by notification in the Official Gazette, that any institution for higher education, other than a University, shall be deemed to be a University for the purposes of this Act, and on such a declaration being made, all the provisions of this Act shall apply to such institution as if it were a University within the meaning of clause (f) of section 2.

CHAPTER II**ESTABLISHMENT OF THE COMMISSION****Establishment of the Commission**

4. (1) With effect from such date as the Central Government may, by notification in the Official Gazette, appoint, there shall be established a Commission by the name of the University Grants Commission.
- (2) The said Commission shall be a body corporate having perpetual succession and a common seal, and shall by the said name sue and be sued.

Composition of the Commission

- ¹[5. (1) The Commission shall consist of –
- (i) a Chairman,
- (ii) a Vice-Chairman, and
- (iii) ten other members, to be appointed by the Central Government.
- (2) The Chairman shall be chosen from among persons who are not officers of the Central Government or of any State Government.
- (3) Of the other members referred to in clause (iii) of sub-section (1) –
- (a) two shall be chosen from among the officers of the Central Government, to represent that Government;

1. Subs. by. Act 33 of 1972, s. 3, for s. 5 (w.e.f. 17-6-1972)

(Chapter II – Establishment of the Commission)

- (b) not less than four shall be chosen from among persons who are, at the time when they are so chosen, teachers of Universities; and
- (c) the remainder shall be chosen from among persons-
 - (i) Who have knowledge of, or experience in, agriculture, commerce, forestry or industry;
 - (ii) who are members of the engineering, legal, medical or any other learned profession; or
 - (iii) who are Vice-Chancellors of Universities or who, not being teachers of Universities, are in the opinion of the Central Government, educationists of repute or have obtained high academic distinctions:

Provided that not less than one-half of the number chosen under this clause shall be from among persons who are not officers of the Central Government or of any State Government.

- (4) The Vice-Chairman shall exercise such of the powers, and discharge such of the duties, of the Chairman as may be prescribed.
- (5) Every appointment under this section shall take effect from the date on which it is notified by the Central Government in the Official Gazette.
- 6. ¹(1) A person appointed as Chairman, Vice-Chairman or other member after the commencement of the University Grants Commission (Amendment) Act, 1985 shall, unless he sooner becomes disqualified for continuing as such under the rules that may be made under this Act, –
 - (a) in the case of Chairman, hold office for a term of five years or until he attains the age of sixty-five years, whichever is earlier;
 - (b) in the case of Vice-Chairman, hold office for a term of three years or until he attains the age of sixty-five years, whichever is earlier;
 - (c) in the case of any other member, hold office for a term of three years:

**Terms and
conditions of
service of members**

1. Subs. by Act 70 of 1985, for sub-section (1) of Section 6 (w.e.f. 20-12-1985)

(Chapter II – Establishment of the Commission)

Provided that—

- (i) a person who has held office as Chairman or Vice-Chairman shall be eligible for further appointment as Chairman, Vice-Chairman or other member, and
- (ii) a person who has held office as any other member shall be eligible for further appointment as Chairman, Vice-Chairman or other member:

Provided further that a person who has held office for two terms, in any capacity, whether as Chairman, Vice-Chairman or other member [excluding a member referred to in clause (a) of sub-section (3) of section 5], shall not be eligible for any further appointment as Chairman, Vice-Chairman or other member.

- (2) A member may resign his office by writing under his hand addressed to the Central Government; but he shall continue in office until his resignation is accepted by the Central Government.

- ¹[(3) If a casual vacancy occurs in the office of the Chairman, whether by reason of his death, resignation or inability to discharge his functions owing to illness or other incapacity, the Vice-Chairman holding office as such for the time being shall, withstanding anything contained in sub-section (2) of section 5, act as the Chairman and shall, unless any other person is appointed earlier as the Chairman, hold the office of the Chairman for the remainder of the term of office of the person in whose place he is to so act:

Provided that where no Vice-Chairman is holding office at the time, when the vacancy in the office of the Chairman occurs, the Central Government shall, notwithstanding anything contained in sub-section (2) of section 5, appoint any other member to act as the Chairman and the person so appointed shall not hold the office of the Chairman for a period exceeding six months.

- (4) If a casual vacancy occurs in the office of the Vice-Chairman or any other member, whether by reason of his death, resignation or inability to discharge his functions owing to illness or other incapacity, such vacancy shall be filled up by the Central Government by making a fresh appointment and the member so appointed shall hold office for a term of three years.

(Chapter II – Establishment of the Commission)

- (5) The office of the Chairman and the Vice-Chairman shall be whole-time and salaried and subject thereto, the terms and conditions of service of the Chairman, Vice-Chairman and other members shall be such as may be prescribed.]
7. The Commission shall meet at such times and places and shall observe such rules of procedure in regard to the transaction of business at its meetings as may be provided by regulations made under this Act. **Meetings of the Commission**
8. No act or proceedings of the Commission shall be deemed to be invalid by reason merely of any vacancy in, or any defect in the constitution of the Commission. **Vacancies amongst members or defect in constitution not to invalidate acts or proceedings of the Commission**
9. (1) The Commission may associate with itself, in such manner and for such purposes as may be determined by regulations made under this Act, any person whose assistance or advice it may desire in carrying out any of the provisions of this Act. **Temporary association of persons with the Commission for particular purposes**
- (2) A person associated with it by the Commission under sub-section (1) for any purpose shall have a right to take part in the discussions relevant to that purpose, but shall not have a right to vote at a meeting of the Commission, and shall not be a member for any other purpose.
10. Subject to such rules as may be made by the Central Government in this behalf, the Commission may appoint a Secretary and such other employees as it may think necessary for the efficient performance of its functions under this Act and the terms and conditions of service of the employees shall be such as may be determined by the Commission. **Staff of the Commission**
11. All orders and decisions of the Commission shall be authenticated by the signature of the Chairman or any other member authorised by the Commission in this behalf, and all other instruments issued by the Commission shall be authenticated by the signature of the Secretary or any other officer of the Commission authorised in like manner in this behalf. **Authentication of orders and other instruments of the Commission**
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CHAPTER III

POWERS AND FUNCTIONS OF THE COMMISSION

Functions of the Commission

12. It shall be the general duty of the Commission to take, in consultation with the Universities or other bodies concerned, all such steps as it may think fit for the promotion and co-ordination of University education and for the determination and maintenance of standards of teaching, examination and research in Universities, and for the purpose of performing its functions under this Act, the Commission may-

- (a) inquire into the financial needs of Universities;
- (b) allocate and disburse, out of the Fund of the Commission, grants to Universities established or incorporated by or under a Central Act for the maintenance and development of such Universities or for any other general or specified purpose;
- (c) allocate and disburse, out of the Fund of the Commission, such grants to other Universities as it may deem ¹[necessary or appropriate for the development of such Universities or for the maintenance, or development, or both, of any specified activities of such Universities] or for any other general or specified purpose:

Provided that in making any grant to any such University, the Commission shall give due consideration to the development of the University concerned, its financial needs, the standard attained by it and the national purposes which it may serve,

- ²[(cc) allocate and disburse out of the Fund of the Commission, such grants to institution deemed to be Universities in pursuance of a declaration made by the Central Government under section 3, as it may deem necessary, for one or more of the following purposes, namely:-
 - (i) for maintenance in special cases,
 - (ii) for development,
 - (iii) for any other general or specified purpose;]

1. Subs. by Act 33 of 1972, s. 5, for certain words (w.e.f. 17-6-1972)

2. Ins. by s. 5, *ibid.* (w.e.f 17-6-1972)

(Chapter III-Powers and Functions of the Commission)

- ¹["(ccc) establish, in accordance with the regulations made under this Act, institutions for providing common facilities, services and programmes for a group of universities or for the universities in general and maintain such institutions or provide for their maintenance by allocating and, disbursing out of the Fund of the Commission such grants as the Commission may deem necessary".]
- (d) recommend to any University the measures necessary for the improvement of University education and advise the University upon the action to be taken for the purpose of implementing such recommendation;
 - (e) advise the Central Government or any State Government on the allocation of any grants to Universities for any general or specified purpose out of the Consolidated Fund of India or the Consolidated Fund of the State, as the case may be;
 - (f) advise any authority, if such advice is asked for, on the establishment of a new University or on proposals connected with the expansion of the activities of any University;
 - (g) advise the Central Government or any State Government or University on any question which may be referred to the Commission by the Central Government or the State Government or the University, as the case may be;
 - (h) collect information on all such matters relating to University education in India and other countries as it thinks fit and make the same available to any University;
 - (i) require a University to furnish it with such information as may be needed relating to the financial position of the University or the studies in the various branches of learning undertaken in that University, together with all the rules and regulations relating to the standards of teaching and examination in that University respecting each of such branches of learning;
 - (j) perform such other functions as may be prescribed or as may be deemed necessary by the Commission for advancing the cause of higher

(Chapter III-Powers and Functions of the Commission)

education in India or as may be incidental or conducive to the discharge of the above functions.

Regulation of fees and prohibition of donations in certain cases

[(12A*)(1) In this section

- (a) "affiliation" together with its grammatical variations, includes, in relation to a college, recognition of such college by, association of such college with, and admission of such college to the privileges of, a university;
 - (b) "college" means any institution, whether known as such or by any other name which provides for a course of study for obtaining any qualification from a university and which, in accordance with the rules and regulations of such university, is recognised as competent to provide for such course of study and present students undergoing such course of study for the examination for the award of such qualification;
 - (c) "prosecution" in relation to a course of study, includes promotion from one part or stage of the course of study to another part or stage of the course of study;
 - (d) "qualification" means a degree or any other qualification awarded by a university;
 - (e) "regulations" means regulations made under this Act;
 - (f) "specified course of study" means a course of study in respect of which regulations of the nature mentioned in sub-section (2) have been made;
 - (g) "student" includes a person seeking admission as a student;
 - (h) "university" means a university or institution referred to in sub-section (1) of section 22.
- (2) Without prejudice to the generality of the provisions of section 12 if, having regard to –
- (a) the nature of any course of study for obtaining any qualification from any university;
 - (b) the types of activities in which persons obtaining such qualification are likely to be engaged on the basis of such qualification;

* Ins. by S. 3 of Act 59 of 1984 (w.e.f. 1-10-84)

(Chapter III-Powers and Functions of the Commission)

- (c) the minimum standards which a person possessing such qualification should be able to maintain in his work relating to such activities and the consequent need for ensuring, so far as may be, that no candidate secures admission to such course of study by reason of economic power and thereby prevents a more meritorious candidate from securing admission to such course of study; and
- (d) all other relevant factors, the Commission is satisfied that it is necessary so to do in the public interest, it may, after consultation, with the university or universities concerned specify by regulations the matters in respect of which fees may be charged, and the scale of fees in accordance with which fees shall be charged in respect of those matters on and from such date as may be specified in the regulations in this behalf, by any college providing for such course of study from, or in relation to, any student in connection with his admission to, and prosecution of, such course of study:

Provided that different matters and different scales of fees may be so specified in relation to different universities or different classes of colleges or different areas.

- (3) Where regulations of the nature referred to in sub-section (2) have been made in relation to any course of study, no college providing for such course of study shall –
 - (a) levy or charge fees in respect of any matter other than a matter specified in such regulations;
 - (b) levy or charge any fees in excess of the scale of fees specified in such regulations, or
 - (c) accept, either directly or indirectly, any payment otherwise than by way of fees; or any donation of gift (whether in cash or kind),from, or in relation to, any student in connection with his admission to, and prosecution of, such course of study.

(Chapter III-Powers and Functions of the Commission)

- (4) If, after making, in relation to a college providing for a specified course of study, an inquiry in the manner provided by regulations, and after giving such college a reasonable opportunity of being heard, the Commission is satisfied that such college has contravened the provisions of sub-section (3), the Commission may, with the previous approval of the Central Government, pass an order prohibiting such college from presenting any students then undergoing such course of study therein to any university for the award of the qualification concerned.
- (5) The Commission shall forward a copy of the order made by it under sub-section (4) to the university concerned, and on and from the date of receipt by the university of a copy of such order, the affiliation of such college to such university shall, in so far as it relates to the course of study specified in such order, stand terminated and on and from the date of termination of such affiliation and for a period of three years thereafter affiliation shall not be granted to such college in relation to such or similar course of study by that or any other university.
- (6) On the termination of the affiliation of any college under sub-section (5), the Commission shall take all such steps as it may consider appropriate for safe-guarding the interests of the students concerned.
- (7) The provisions of this section and the regulations made for the purposes of this section shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force.]*

**Prohibition
regarding giving
of any grant to a
University not
declared by the
Commission fit to
receive such grant**

- ¹[(12B) No grant shall be given by the Central Government, the Commission, or any other organisation receiving any funds from the Central Government, to a University which is established after the commencement of the University Grants Commission (Amendment) Act, 1972, unless the Commission has, after satisfying itself as to such matters as may be prescribed, declared such University to be fit for receiving such grant.]

* Ins. by S.3 of Act 59 of 1984 (w.e.f. 1-10-1984)

1. Ins. by Act 33 of 1972, s.6 (w.e.f. 17-6-1972) and renumbered as section 12B by S.3 of Act 59 of 1984 (w.e.f. 1-10-1984).

(Chapter III-Powers and Functions of the Commission)

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| <p>13. (1) For the purpose of ascertaining the financial needs of a University or its standards of teaching, examination and research, the Commission may, after consultation with the University, cause an inspection of any department or departments thereof to be made in such manner as may be prescribed and by such person or persons as it may direct.</p> <p>(2) The Commission shall communicate to the University the date on which any inspection under sub-section (1) is to be made and the University shall be entitled to be associated with the inspection in such manner as may be prescribed.</p> <p>(3) The Commission shall communicate to the University its views in regard to the results of any such inspection and may, after ascertaining the opinion of the University, recommend to the University the action to be taken as a result of such inspection.</p> <p>(4) All communications to a University under this section shall be made to the executive authority thereof and the executive authority of the University shall report to the Commission the action, if any, which is proposed to be taken for the purpose of implementing any such recommendation as is referred to in sub-section (3).</p> | <p>Inspection</p> |
| <p>14. If any University ¹[grants affiliation in respect of any course of study to any college referred to in sub-section (5) of section 12A in contravention of the provisions of that sub-section or] fails within a reasonable time to comply with any recommendation made by the Commission under section 12 or section 13, ²[or contravenes the provision of any rule made under clause (f) or clause (g) of sub-section (2) of section 25, or of any regulation made under clause (e) or clause (f) or clause (g) of section 26,] the Commission, after taking into consideration the cause, if any, shown by the University ³[for Such failure or contraventions may withhold from the University the grants proposed to be made out of the Fund of the Commission.</p> | <p>Consequences of failure of Universities to comply with recommendations of the Commission</p> |
| <p>15. The Central Government may, after due appropriation made by Parliament by law in this behalf, pay to the</p> | <p>Payment to the Commission</p> |

1. Ins. by S. 4 of Act 59 of 1984 (w.e.f. 1-10-1984)

2. Ins. by s. 7, *ibid* (w.e.f. 17-6-1972)

3. Subs. by s. 7, *ibid.*, for certain words (w.e.f. 17-6-1972)

(Chapter III-Powers and Functions of the Commission)

Commission in each financial year such sums as may be considered necessary for the performance of the functions of the Commission under this Act.

Fund of the Commission

16. (1) The Commission shall have its own Fund; and all sums which may, from time to time, be paid to it by the Central Government and all the receipts of the Commission (including any sum which any State Government or any other authority or person may hand over to the Commission) shall be carried to the Fund and all payments by the Commission shall be made therefrom.
- (2) All moneys belonging to the Fund shall be deposited in such banks or invested in such manner as may, subject to the approval of the Central Government, be decided by the Commission.
- (3) The Commission may spend such sums as it thinks fit for performing its functions under this Act, and such sums shall be treated as expenditure payable out of the Fund of the Commission.

Budget

17. The Commission shall prepare, in such form and at such time each year as may be prescribed, a budget in respect of the financial year next ensuing showing the estimated receipts and expenditure, and copies thereof shall be forwarded to the Central Government.

Annual report

18. The Commission shall prepare once every year, in such form and at such time as may be prescribed, an annual report giving a true and full account of its activities during the previous year, and copies thereof shall be forwarded to the Central Government and the Government shall cause the same to be laid before both Houses of Parliament.

Account and audit

19. (1) The Commission shall cause to be maintained such books of account and other books in relation to its account in such form and in such manner as may, in consultation with the Comptroller and Auditor-General of India, be prescribed.
- (2) The Commission shall, as soon as may be after closing its annual accounts, prepare a statement of accounts in such form, and forward the same to the Comptroller and Auditor-General by such date, as the Central Governments may, in consultation with the Comptroller and Auditor-General, determine.

**(Chapter III-Powers and Functions of the Commission
Chapter IV - Miscellaneous)**

- (3) The accounts of the Commission shall be audited by the Comptroller and Auditor-General at such times and in such manner as he thinks fit.
- (4) The annual accounts of the Commission together with the audit report thereon shall be forwarded to the Central Government and the Government shall cause the same to be laid before both Houses of Parliament and shall also forward a copy of the audit report to the Commission for taking suitable action on the matters arising out of the audit report.

CHAPTER IV

MISCELLANEOUS

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| <p>20. (1) In the discharge of its functions under this Act, the Commission shall be guided by such directions on questions of policy relating to national purposes as may be given to it by the Central Government.</p> <p>(2) If any dispute arises between the Central Government and the Commission as to whether a question is or is not a question of policy relating to national purposes, the decision of the Central Government shall be final.</p> | <p>Directions by the Central Government</p> |
| <p>21. The Commission shall furnish to the Central Government such returns or other information with respect to its property or activities as the Central Government may, from time to time, require.</p> | <p>Returns and information</p> |
| <p>22. (1) The right of conferring or granting degrees shall be exercised only by a University established or incorporated by or under a Central Act, a Provincial Act or a State Act or an institution deemed to be a University under section 3 or an institution specially empowered by an Act of Parliament to confer or grant degrees.</p> <p>(2) Save as provided in sub-section (1), no person or authority shall confer, or grant, or hold himself or itself out as entitled to confer or grant, any degree.</p> <p>(3) For the purposes of this section, "degree" means any such degree as may, with the previous approval of the Central Government, be specified in this behalf by the Commission by notification in the official Gazette.</p> | <p>Right to confer degrees</p> |

(Chapter IV - Miscellaneous)**Prohibition of the use of the word "University" in certain cases**

23. No institution, whether a corporate body or not, other than a University established or incorporated by or under a Central Act, a Provincial Act or a State Act shall be entitled to have the word "University" associated with its name in any manner whatsoever:

Provided that nothing in this section shall, for a period of two years from the commencement of this Act, apply to an institution which, immediately before such commencement, had the word "University" associated with its name.

Penalties

24. Whoever contravenes the provisions of section 22 or section 23 shall be punishable with fine which may extend to one thousand rupees, and if the person contravening is an association or other body of individuals, every member of such association or other body who knowingly or wilfully authorises or permits the contravention shall be punishable with fine which may extend to one thousand rupees.

Power to make rules

25. (1) The Central Government may, by notification in the Official Gazette, make rules to carry out the purpose of this Act.
- (2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—
- (a) the procedure for the retirement of members under section 6;
 - (b) the disqualifications for continuing as a member of the Commission;
 - (c) the terms and conditions of service of members of the Commission;
 - (d) the terms and conditions of service of employees appointed by the Commission;
 - (e) the additional functions which may be performed by the Commission under clause (j) of section 12;
 - (f) the return and information which are to be furnished by Universities in respect of their financial position or standards of teaching and examination maintained therein;
 - (g) the inspection of Universities.

(Chapter IV - Miscellaneous)

- (h) the form and manner in which the budget and reports are to be prepared by the Commission;
 - (i) the manner in which the accounts of the Commission are to be maintained;
 - (j) the form and manner in which returns or other information are to be furnished by the Commission to the Central Government;
 - (k) any other matter which has to be, or may be, prescribed.
- ¹“(3) The power to make rules conferred by this section shall include the power to give retrospective effect from a date not earlier than the date of commencement of this Act, to the rules or any of them but no retrospective effect shall be given to any rule so as to prejudicially affect the interests of any person to whom such rule may be applicable.”]
26. (1) The Commission² [may, by notification in the Official Gazette, make regulations] consistent with this Act and the rules made thereunder—
- (a) regulating the meetings of the Commission and the procedure for conducting business thereat;
 - (b) regulating the manner in which and the purposes for which persons may be associated with the Commission under section 9;
 - (c) specifying the terms and conditions of service of the employees appointed by the Commission;
 - (d) specifying the institutions or class of institutions which may be recognised by the Commission under clause (f) of sub-section 2;
 - (e) defining the qualifications that should ordinarily be required of any person to be appointed to the teaching staff of the University, having regard to the branch of education in which he is expected to give instruction;
 - (f) defining the minimum standards of instruction for the grant of any degree by any University;
- Power to make regulations**

1. Subs. by s. 5, *ibid* (w.e.f. 1-10-1984)

2. Subs. by s. 6, *Ibid.*, for certain words (w.e.f. 1-10-1984)

(Chapter IV - Miscellaneous)

- (g) regulating the maintenance of standards and the co-ordination of work or facilities in Universities.
- ¹[(h) regulating the establishment of institutions referred to in clause (ccc) of section 12 and other matters relating to such institutions;
- (i) specifying the matters in respect of which fees may be charged, and scales of fees in accordance with which fees may be charged, by a college under sub-section (2) of section 12A;
- (j) specifying the manner in which an inquiry may be conducted under sub-section (4) of section 12A;"]
- (2) No regulation shall be made under clause (a) or clause (b) or clause (c) or clause (d) ²[or clause (h) or clause (j) or clause (j)] of sub-section (1) except with the previous approval of the Central Government.
- ³[(3) The power to make regulations conferred by this section [except clause (i) and clause (j) of sub-section (1)] shall include the power to give retrospective effect from a date not earlier than the date of commencement of this Act, to the regulations or any of them but no retrospective effect shall be given to any regulation so as to prejudicially affect the interests of any person to whom such regulation may be applicable."]
- Power to delegate** ⁴[27. (1) The Commission may, ⁵[by regulations made, by notification in the Official Gazette,] under this Act, delegate to its Chairman, Vice-Chairman or any of its officers, its power of general superintendence and direction over the business transacted by, or in, the Commission, including the powers with regard to the expenditure incurred in connection with the maintenance of the office and internal administration of the Commission.
- (2) No regulation shall be made under this section except with -the previous approval of the Central Government.]

1. Ins. be s. 6 of Act 59 of 1984

2. Ins. by s. 6(b), *ibid* (w.e.f. 1-10-1984)

3. Ins. by s. 6(c), *ibid* (w.e.f. 1-10-1984)

4. Ins. by Act 33 of 1972, s. 8 (w.e.f. 17-6-1972)

5. Subs. by s. 7, *ibid* (w.e.f. 1-10-1984)

(Chapter IV - Miscellaneous)

¹["28. Every rule and every regulation made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session, or the successive sessions aforesaid, both Houses agree in making any modification in the rule or regulation or both Houses agree that the rule or regulation should not be made, the rule or regulation shall thereafter have effect only in such modified form or be of no effect, as the case may, be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule or regulation."]

**Laying of rules
and regulations
before Parliament**

²[No rule made or purporting to have been made, with retrospective effect, under section 25 of the principal Act before the commencement of this Act shall be deemed to have been invalid or ever to have been invalid merely on the ground that such rule was made with retrospective effect and accordingly every such rule and every action taken or thing done thereunder shall be as valid and effective as if the provisions of section 25 of the principal Act, as amended by this Act, were in force at all material times when such rule was made or action or thing was taken or done.]

Validation

1. Ins. by s. 8, *ibid* (w.e.f. 1-10-1984)
2. Vide s. 9, *ibid* (w.e.f. 1-10-1984)

2.0 UGC Inspection of Universities Rules, 1960

TO BE PUBLISHED IN THE GAZETTE OF INDIA

PART II NOTIFICATION

No. F. 24-6/56-A. 1

Dated the _____

	In exercise of the power conferred by clause (g) of Sub-Section (2) of Section 25 of the University Grants Commission Act 1956 (3 of 1956) the Central Government hereby makes the following rules:-
Short title and commencement	1. (1) These rules may be called the University Grants Commission (Inspection of Universities) Rules, 1960. (2) They shall come into force with immediate effect.
Definitions	2. In these rules unless the context otherwise requires:- (a) "Commission" means the University Grants Commission; (b) "University" means a University as defined in Section 2(f) of the University Grants Commission Act, 1956; and includes an institution of higher learning deemed to be a University under Section 3 of the said Act; (c) "Financial Year" means the year commencing from the 1st April and ending 31st March of the following calendar year; and (d) "Academic Year" means the academic year of the respective Universities.
Inspection	3. The Commission may appoint a Committee, wherever or whenever necessary consisting of such persons as it may decide in each case and subject to the provision of rule 6, to examine and report on the financial needs of a University or its standards of teaching, examination and research or both. 4. Before the Commission inspects the University, the Commission shall send to the Vice-Chancellor of the University a questionnaire seeking information on all relevant matters relating to the Department/ Departments or institution/institutions to be inspected. 5. After receipt of information under rule 4, the Commission shall fix the date of inspection by the Committee and communicate the same. to the University concerned.

Association of Universities

6. The University shall be associated with the inspection in the following manner, namely:-
 - (a) The University shall nominate not more than three representatives who may include the Vice-Chancellor or the Registrar, the Dean or the Deans of Faculty/Faculties concerned and such other officers/teachers of the department/departments or institutions as may be deputed by the University and their names shall be communicated to the Commission.
 - (b) The representatives of the University shall be associated with the inspection for such time and in such manner as may be determined by the Committee after consultation with the University.
 - (c) In carrying out the inspection, the Committee may have discussions with such officer/teachers and other members of the department(s) or institution(s) to be inspected as may be considered necessary by the Committee.
7. As soon as possible after the inspection, the Committee shall report its findings to the Commission.

(P.N. KIRPAL)
Secretary

To

The Publisher,
The Gazette of India,
The Government of India Press,
New Delhi.

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- (5) All the Sections of this Ministry.

By Order.

(P.D. SHUKLA)
Deputy Educational Advisor

3.0 UGC Rules regarding Fitness of Universities

Contents

- 3.1 UGC (Fitness of Certain Universities for Grants) Rules, 1974.
- 3.2 UGC (Fitness of Agricultural Universities for Grants) Rules, 1975.
- 3.3 UGC (Fitness of Technological Universities for Grants) Rules, 1978.
- 3.4 UGC (Fitness of Open Universities for Grants) Rules, 1988.



3.1. UGC (Fitness of Certain Universities for Grants) Rules, 1974

*To be Published in the Gazette of India
Part II, Section 3, Sub-Section (i)*

No. F.9-2/74-U.2.
Government of India
Ministry of Education & Social Welfare
(Department of Education)

New Delhi, the 9th Sep., 1974.

NOTIFICATION

In exercise of the powers conferred by Section 25 of the University Grants Commission Act, 1956 (3 of 1956) read with Section 12-A Now read as 12-B of that Act, the Central Government hereby makes the following rules, namely:-

1. Short title, application and commencement:
 - (1) These rules may be called the University Grants Commission (Fitness of Certain Universities for Grants) Rules, 1974.
 - (2) They shall apply to every university established after the commencement of the University Grants Commission (Amendment) Act, 1972 (33 of 1972), other than,
 - (i) an agricultural university,
 - (ii) a university established against the- advice of the Commission for imparting, exclusively, technological or medical education; and
 - (iii) an institution recognised by the Commission, under the clause (f) of Section 2 of the University Grants Commission Act, 1956 (3 of 1956), on or after the 17th day of June 1972, the date on which the University Grants Commission (Amendment) Act, 1972 (33 of 1972) came into force.
 - (3) They shall come into force on the date of their publication in the Official Gazette.
2. *Fitness for Grant* – “No University to which these rules apply shall be declared to be fit to receive grants from the Central Government the University Grants Commission or any other Organisation receiving any funds from the Central Government unless the Commission is satisfied that:



- (i) the University is a University established or incorporated by or under a Central Act, or
- (ii) in the case of any other University, the establishment of the University is justified on one or more of the following grounds, namely:-
 - (a) inadequacy of the facilities for higher education and research in the area in which the University is situated and the inability of the existing University or Universities of the state concerned to provide for such facilities either in its or their existing faculties or schools or by the establishment of post-graduate centres or campuses.
 - (b) the University has or shall have some special features or new, programme and activities which will augment the existing academic resources in the country.
 - (c) the University has or shall have programmes for the upliftment of backward areas or removal of regional imbalances.
- (iii) the law under which the University is established contains a provision for the establishment of a Planning Board or Committee consisting of eminent educationists to indicate the lines on which the University shall develop.
- (iv) in the law under which the University established, due weight has been given to the recommendations made by:-
 - (a) the Education Commission (1964-66) constituted by a resolution of the Government of India;
 - (b) the Committee on the Governance of Universities appointed by the Commission; and
 - (c) the Committees of Panels appointed by the Commission during the last ten years:
- (v) the University is not merely an affiliating University but a multifaculty University having adequate facilities, for teaching and research in a number of subjects.
- (vi) the university has powers to provide instruction through correspondence courses and to declare a college, department, centre or campus as an autonomous college, department, centre-or campus, respectively,
- (vii) every teaching department, centre, discipline in the University has a provision for a minimum staff of one Professor, two Readers and an adequate number of lecturers alongwith the necessary supporting staff,
- (viii)adequate machinery for the health residence and welfare for the students has either been provided in, or resources are being made available for the purpose to the University;

- (ix) the university has been provided with adequate facilities in respect of building, equipment, books, library, hostel and staff quarters, excluding colleges library or institutions affiliated or admitted to its privileges, whose aggregate value is not less than Rs 2 crores alongwith the developed land or the State Government is prepared to give an assurance to the Commission that a minimum amount of Rs 2 crores shall be made available to the University during the initial period of five years for the provision of the above mentioned facilities in addition to the developed land.

Sd/-

(I.D.N. Sahi)

Secretary to the Government of India

The Manager,
Government of India Press,
Ring Road, New Delhi.

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2. The Comptroller & Auditor General of India, New Delhi.
3. The Accountant General, Central Revenues, New Delhi.
4. All State Governments and Administrations.
5. All Ministries of the Government of India.
6. All the Universities in India.
7. All the coordination Sections of various Divisions in the Ministry of Education and Social Welfare.

Sd/-

(M.N. Sinha)

Under Secretary



3.2 UGC (Fitness of Agricultural Universities for Grants) - Rules, 1975

*To be published in the Gazette of India
Part II, Section 3, Sub-Section (i)*

No.F.16-28/75-L.U.
Government of India
Ministry of Education & Social Welfare
(Department of Education)

New Delhi, the 13th Aug., 1975.

NOTIFICATION

In exercise of the powers conferred by Section 25 of the University Grants Commission Act, 1956 (3 of 1956) read with Section 12-A Now read as 12-B of that Act, the Central Government hereby makes the following rules, namely:-

1. *Short title, application and commencement:-*

- (1) These rules may be called the University Grants Commission (Fitness of Agricultural Universities for Grant) Rules, 1975.
- (2) They shall apply to every Agricultural University established after commencement of the University Grants Commission (Amendment) Act, 1972 (33 of 1972)
- (3) They shall come into force on the date of their publication in the Official Gazette.

2. *Fitness for grant:* No Agricultural University to which these rules apply shall be declared to be fit to receive grant from the Central Government, the Commission, or any other Organisation receiving any funds from the Central Government, unless the Commission is satisfied in respect of the following matters, namely:-

- (i) the establishment of the agricultural University is justified on one or more of the following grounds, namely:-
 - (a) inadequacy of the facilities for higher education and research in agriculture in the area in which the University is situated and the inability of the existing University or Universities of the State concerned to provide for such facilities either in its or their existing faculties or schools or by the establishment of post-graduate centres or campuses;

- (b) the University has or shall have some special features or new programmes and activities which will augment the existing academic resources in the country;
 - (c) the University has or shall have programme for the upliftment of backward areas or removal of regional imbalances;
- (ii) in the law under which the agricultural University is established, due weight has been given to the recommendations made by-
 - (a) the Education Commission (1964-66) constituted by the resolution of the Government of India.
 - (b) the Committee on the governance of Universities appointed by the Commission;
- (iii) the State Government concerned with the University has accepted the principle of integration of teaching, research and extension education in the broad area of agriculture and in pursuance of this has agreed to transfer research, in the broad area of agriculture within the State to the University.
- (iv) to facilitate co-ordination between the agricultural University and the concerned Departments of the State Government, a convention is developed between the agricultural University and the Department of the State Government, delineating the responsibilities and functions of each in the area of research and extension education and also an apex body at the State Level has been set up by the State Government consisting of the representatives of the University and the State Government,
- (v) the University will have the necessary discipline to provide for study and research and extension education in the subjects related to agriculture, veterinary medicine, animal husbandry, forestry, agricultural engineering, fisheries and home science, keeping in view the requirements of the ate;
- (vi) the University provides for integration of teaching, research and extension education in each of the departments and assures the minimum staff required for the undergraduate and post-graduate education, research and extension education in accordance with the recommendations of the Indian Council of Agricultural Research and that the State Government ensures the recurring grant to the University for the maintenance of its activities:
- (vii) the State Government ensures the provision of adequate basic facilities in respect of scientific staff, supporting staff, building, equipment, library, hostels staff quarters, playgrounds, regional research stations, agroclimatic zonewise instructional and research farm facilities, poultry, dairy, livestock, farm machinery and veterinary clinical facilities in

accordance with the recommendations of the Indian Council of Agricultural research; and

- (viii) Adequate facilities for the health, residence and welfare of the students have either been provided or resources are being made available for the purpose by the State Government to the University.

Sd/-
(K.N. Channa)
Secretary to the Govt. of India.

To

The Manager
Government of India Press
Ring Road
New Delhi.



3.3. UGC (Fitness of Technological Universities for Grants) Rules, 1978

*To be published in the Gazette of India
Part II - Section 3, Sub-Section (i)*

Government of India
Ministry of Education and Social Welfare
(Department of Education)

New Delhi, the 31st May, 1978

NOTIFICATION

G.S.R. _____ In exercise of the power conferred by Section 25, read with Section 12-A Now read as 12-B of the University Grants Commission 1956 (3 of 1956), the Central Government hereby makes the following rules, namely-

1. *Short title, application and commencement:-*

- (1) These rules may be called the University Grants Commission (Fitness of Technological Universities for Grants) Rules, 1978.
- (2) They shall apply to every Technological University established on or after the 17th day of June, 1972 the date on which the University Grants Commission (Amendment) Act, 1972 (33 of 1972) came into force.
- (3) They shall come into force on the date of their publication in the Official Gazette.

2. *Definitions:* In these rules, unless the context otherwise requires-

- (a) "Industry" means any business, trade undertaking manufacture or calling employers and includes any calling, service, employment, handicraft, or industrial occupation or a vocation of workmen:
- (b) "Technological University" means a university which provides for instruction and research in any branch or branches of engineering and technology, and for the advancement of learning and dissemination of knowledge in such branch or branches.

Fitness for Grant: No Technological University to which these rules apply be declared to be fit to receive grant from the Central Government, the Commission or any other organisation receiving any funds from the Central Government unless the Commission is satisfied in respect of the following matters, namely-

- (a) there is a felt need to set up such a university and there is an evidence that the existing universities in a state cannot effectively

meet the requirements of development of Engineering and Technological education through its colleges either directly maintained by or affiliated to it;

- (b) it has adequate facilities for postgraduate teaching and research and has facilities for adequate support of science departments of its own;
- (c) it provides adequate link with the industry for its courses and is in a position to provide for high level consultancy to the industry;
- (d) it provides courses of extension and devotes attention for regional development;
- (e) the State Government ensures the provision of adequate basic facilities in respect of scientific staff, supporting staff, buildings, equipment, library, hostels, staff quarters, playgrounds and the like as may be determined in consultation with the All India Council for Technical Education;
- (f) in the law under which such university is established, due weightage has been given to the recommendations made by-
 - (i) the Education Commission (1964-66) constituted by a Resolution of the Government of India,
 - (ii) the Committee on the Governance of Universities appointed by the Commission.

No.F.16-84/76-LU(U.5)

Sd/-

(S.N. Pandita)

Joint Secretary to the Govt. of India

To

The Manager
Government of India Press
Ring Road, New Delhi.



3-4. UGC (Fitness of Open Universities for Grants) Rules, 1988

*To be published in the Gazette of India
Part II - Section 3, Sub-Section (i)*

Government of India
Ministry of Human Resource Development
Department of Education

New Delhi, 8th March, 1989

NOTIFICATION

G.S.R. _____ In exercise of the powers conferred by Section 25, read with Section 12-B of the University Grants Commission 1956 (3 of 1956), the Central Government hereby makes the following rules, namely-

1. *Short title, application and commencement:-*

- (1) These rules may be called the University Grants Commission (Fitness of Open Universities for Grants) Rules, 1988.
- (2) They shall apply to every Open University except an Open University established or incorporated by or under a Central Act.
- (3) They shall come into force on the date of their publication in the Official Gazette.

2. *Definitions:*

In these rules, unless the context otherwise requires:-

- (a) "Open University" means a University which imparts education exclusively through distance education in any branch or branches of knowledge: and
- (b) "Study Centre" means a centre established, maintained or recognised by the Open University for the purpose of advising, counselling or for rendering any other assistance required by the students.

3. *Fitness for Grant:*

The University Grants Commission shall not declare an Open University to be fit to receive grants from the Central Government, the Commission or any other Organisation receiving any funds from the Central Government, unless the Commission is satisfied in respect of the following matters, namely:-

- (a) The law under which the Open University is established or incorporated

is broadly in line with the provisions made in the Indira Gandhi National Open University Act, 1985.

- (b) The Open University has a network of Study Centres in accordance with the recommendations of the Indira Gandhi National Open University.
- (c) The State Government has ensured provision of adequate facilities in respect of the following:

(i) Developed land 40-60 Acres

(ii) Core staff of 5 Professors/ 5 Readers and 20 Lecturers.

(iii) Buildings:

(a) Administrative 4000 Sq. mts.

(b) Academic (for Core Faculty, Guest & Part-time Faculty and their Supporting staff, Library for Books & Cassettes, Seminars and Committee rooms) 3.000 Sq. mts

(c) Material storage and distribution 2.000 Sq. mts

(d) Studio with auxiliary accommodation 10,000 Sq. mts.

Total = 10,000 Sq. mts.

(iv) Faculty guest house for atleast 20 persons.

(v) Quarters for essential staff.

(vi) Computer system, including site preparation, and equipment for studio, as recommended by the Indira Gandhi National Open University

(vii) Books and Journals Rs. 20 lakhs.

(viii) Infrastructure facilities for Study Centre established or maintained by the Open University. Rs. 1 Lakh per Study Centre.

Provided that before the University is declared fit to receive grant, the University shall have developed land and core staff as provided for in sub-clause (i) and (ii) and has incurred expenditure atleast to the extent of fifty percent of the estimated cost on items mentioned in sub-clauses (iii), (iv), (v), (vi) and (vii).

(J.D. Gupta)
Joint Secretary to the Govt. of India

To

The Manager,
Government of India Press
Mayapuri, Ring Road, New Delhi.

Copy forwarded for information to:-

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3. The Accountant General, Central Revenues, New Delhi.

(M.M. Wadhwa)
Under Secretary to the Govt. of India



4.0 UGC (Returns of Information by Universities) Rules, 1979

*To be published in the Gazette of India Extraordinary
Part II- Section 3, Sub-Section (i)*

Government of India
Ministry of Education and Social Welfare
(Department of Education)

New Delhi, the 18th January, 1979

NOTIFICATION

In exercise of the powers conferred by sub-section (i) read with (f) & (k) of sub-section (2) of Section 25, of the University Grants Commission Act. 1956 (3 of 1956), the Central Government hereby makes the following rules, namely-

1. *Short title, and commencement:-*

- (1) These rules may be called the University Grants Commission (Returns of Information by Universities) Rules, 1979.
- (2) They shall come into force on the date of their publication in the Official Gazette.

2. *Returns and Information to be furnished:*

Every university shall, on or before the date specified by the University Grants Commission every year in this behalf, furnish the following returns and information to the Commission, namely-

- (a) up-to-date copies of,
 - (i) the Act., Statutes and Ordinances concerned;
 - (ii) rules for grant in aid to the colleges belonging to or affiliated to it;
 - (iii) rules of the inspection of colleges belonging to or affiliated to it;
- (b) reports on the inspection of colleges belonging to or affiliated to it;
- (c) minimum working days in the university, period of vacations, examination days and the number of days when actual teaching is conducted exclusive of the days for the preparation for examinations;
- (d) where there are admission tests, a note indicating the minimum criteria laid down alongwith admission policy and variations, if any, from the basis specified for admission;

- (e) the statistics of the students admitted below the minimum qualifications referred to in clause (d);
- (f) residence for students;
- (g) residence for staff;
- (h) the annual accounts of the university including the audit report;
- (i) the total staff strength in different categories with qualifications and research experience. (This could be intimated by the university once in every five years, with changes, if any, to be intimated every year);
- (j) student strength at various stages;
- (k) teacher-pupil ratio;
- (l) results of examinations with divisions.

Explanations: For the removal of doubts it is hereby declared that for the purpose of this rule, the term "university" means a university as defined in clause (f) of Section 2 of the University Grants Commission Act, 1956 (3 of 1956), and includes an institution deemed to be a University under Section 3 of the said Act.

Sd/-

(S.N. Pandita)

Joint Secretary to the Government of India

(No.F.16-64/76-LU(U.5))

The Manager
Government of India Press
Ring Road, New Delhi

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4. The Accountant General, Central Revenues, New Delhi.
5. All State Govts., Administrations of Union Territories.
6. The Registrars of all Universities and all Institutions deemed to be Universities in India.

Sd/-

(M.N. Sinha)

Under Secy. to the Govt. of India

5.0UGC (Fitness of Institutions for Grants) Rules, 1975

To be published in the Gazette of India
Part II- Section 3, Sub-Section (i)

No.F.9-59/74-U2(B)
Government of India
Ministry of Education and Social Welfare
(Department of Education)

New Delhi, June 24, 1975

NOTIFICATION

In exercise of the power conferred by Section 25, read with Section 12-B of the University Grants Commission Act, 1956 (3 of 1956), the Central Government hereby makes the following rules, namely-

1. *Short title, application and commencement:-*

- (1) These rules may be called the University Grants Commission (Fitness of Institutions for Grants) Rules, 1975.
- (2) They shall apply to every institution recognised by the Commission under clause (f) of section 2 of the University Grants Commission Act, 1956 (3 of 1956) on or after the 17th day of June, 1972 the date on which the University Grants Commission (Amendment) Act, 1972 (33 of 1972) came into force.
- (3) They shall come into force on the date of their publication in the Official Gazette.

2. *Fitness for grant:*

No institution to which these rules apply shall be declared to be fit to receive grants from the Central Government, the Commission or any other Organisation receiving any fund from the Central Government unless the Commission is satisfied that the institution:

- (i) Provides instruction upto a Bachelor's degree or upto a post-graduate degree only or provides instructions for a diploma course of duration of not less than one academic year and for which the minimum qualification for admission is a Bachelor's degree;
- (ii) is registered as a society under the Societies Registration Act. 1860 (21 of 1860) or is a body corporate established or incorporated under a Central Act, a provincial Act or a State Act, for the time being in force or is a Trust with Trustees being appointed and vested with legal powers and duties: and

- (iii) is permanently affiliated to a University which has been declared fit under section 12-B of the University Grants Commission Act, 1956 (3 of 1956) for receiving grants.

Sd/-
(K.N. Channa)
Secretary to the Government of India.

To

The Manager,
Government of India Press,
Ring Road,
New Delhi.

Copy forwarded for information to—

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6. The Accountant General, Central Revenues, New Delhi.
7. The Registrars of all Universities in India and all Institutions deemed to be Universities.

Sd/-
(M.N. Sinha)
Under Secretary to the Govt. of India.



6.0 Recognition of College in Terms of Regulations, 1974 framed under the UGC Act

University Grants Commission
Bahadur Shah Zafar Marg
New Delhi - 110 002

No.F.33-34/65(CD/CP)Pt. IV)

Dated 12 July, 1974

The Registrar,

Subject: Recognition of college in terms of regulations framed under section 2(f) of the UGC Act read with Section 26(1) (d) of the UGC Act, 1956.

Sir,

I am directed to say that in exercise of the power conferred by clause (d) of Sub-section 26(1) of Section 26 of the UGC Act, 1956 (3 of 1956 as modified upto 17th June, 1972) and in supersession of the regulations in force at present for according recognition to Institution under clause (f) of Section 2 of this Act, the University Grants Commission with the approval of the Central Government has made the following regulations:-

Recognition of Institution:

- (1) The Commission may, in consultation with the University concerned recognise an institution under clause (f) of Section 2 of the UGC Act, 1956, If :-
 - (i) It is affiliated to, or forms as constituent member of, or is run directly as a University college by or is an institution recognised by a university established or incorporated by or under a Central Act, a Provincial Act or a State Act and the Statutes and Regulations made thereunder or run by Government or local authority.
 - (ii) It provides instructions upto a Bachelor's degree or upto a post-graduate degree or for a post-graduate degree only or provides instruction for a Diploma course of a duration of not less than one academic year and for which the minimum qualification for admission is a Bachelor's degree; and
 - (iii) It is registered as a society under the Societies Registration Act, 1860 (21 of 1860) or is a body corporate, established or incorporated under a Central or State Act, for time being in force or is a Trust with trustees being appointed and vested with legal powers and duties. Provided that the requirements of this clause



shall not apply in the case of an Institution run by the Government or a local authority or any University.

- (iv) In relation to such institution, where it does not fall within clause (iii), a bond is executed by the registered society or trust by which it is managed or run guaranteeing the proper utilisation of the grants that might be paid by the Commission to the institutions and agreeing to refund such part of the grant as may not have been properly utilised for the purpose of the institution and also agreeing to furnish to the Commission the balance sheet of the registered society or trust, as the case may be, alongwith the annual accounts of each of the institutions managed or run by the registered society or trust.

The above regulations would come into force with effect from 1.7.1974. It is requested that the University while sending proposals for inclusion of affiliated colleges in the list of colleges prepared under section 2 (f) of the UGC Act may also send documentary evidence to the effect that the college/ institution is registered as a society under the Societies Registration Act 1860 (21 of 1860) or is a body corporate or incorporated under Central or state act for the time being enforced or is a trust, the trustees being appointed and vested with legal powers and duties.

The proforma in which the particulars of the colleges are to be sent, has been suitably amended to incorporate the above and copy thereof is enclosed for reference.

With regard to colleges already on the list prepared under Section 2 (f) of the UGC Act and which fall under Clause (1) (iv) of the regulations indicated above it is suggested that such colleges/institutions may be advised that a bond is executed by the Registered Society or Trust by which it is managed or run on the lines indicated under the above clause. The University may arrange such bonds duly signed by the Principal concerned and the Secretary or President/Chairman of the concerned Governing Body of the Trust along with a certified copy of the resolution of the Governing Body in support of the Bond executed to be forwarded to the Commission within six months, i.e. by 31.12.74 from the date on which the new regulations came into force. In the case of new institutions falling under clause (iv) above and awaiting recognition under section 2(f) it is requested that the University may ensure that the above mentioned documents are invariably forwarded alongwith the proforma seeking recognition of such colleges under section 2 (f) The details of colleges already recognised and falling under clause (1) (iv) may be communicated to the Commission at your earliest.

The receipt of this letter may be acknowledged.

Yours faithfully,
Sd/-
(R.K. Chhabra)
Secretary



7.0 UGC (Establishment and Maintenance of Institutions) Regulations, 1985

*To be published in the Gazette of India
Part III- Section 4
University Grants Commission*

Bahadur Shah Zafar Marg
New Delhi-110 002

No.F.1-81/84-(CPP)

Dated: 21 December, 1985

NOTIFICATION

In exercise of the power conferred by Clause (h) of Sub-Section (1) of Section 26, of the University Grants Commission Act, 1956, the University Grants Commission makes the following regulations, namely-

1. *Short title, application and commencement:-*
 - (i) These regulations may be called the University Grants Commission (establishment and maintenance of Institutions) Regulations, 1985.
 - (ii) They shall apply to every institution established or caused to be established by the University Grants Commission under this Act.
 - (iii) They shall come into force on the date of their publication in the Gazette of India.
2. (i) The University Grants Commission may with the approval of the Government of India establish or cause to be established an autonomous Organisation for purposes and functions to be specified in a Project Report which would, amongst others, contain the-
 - (a) rationale;
 - (b) objectives and functions;
 - (c) plan of development;
 - (d) the structure of management including the membership of the Society, the Board of Management and other concerned bodies, and their functions and powers, mechanism for its evaluation;
 - (e) financial implications, including phasing of expenditure; and
 - (f) the nature and mechanics for enforcement of accountability to University Grants Commission and Government.

- (ii) Each such institution shall be registered under the Societies Registration Act of 1860 or under the relevant Act of the State Govt. in whose jurisdiction the institution is located.
- (iii) The Memorandum of Association and the Rules of the institution would, amongst others, provide for the following:-
 - (a) Objects of the institution.
 - (b) The membership of the Society, the Board of Management and other concerned bodies, and their functions and powers.
 - (c) The manner of appointment of the staff and the terms and conditions of service.
 - (d) The manner of maintenance of the accounts and related matters, and the audit of the same.

Sd/-
(S.K. Khanna)
Secretary

To

The Manager,
Government of India Press,
Faridabad.

Copy forwarded for Necessary action to the Secretary to the Government of India, Ministry of Human Resource Development (Deptt. of Education), New Delhi-110001.

Sd/-
(C.M. Ramachandran)
Deputy Secretary



8.0 UGC Regulations regarding the Minimum Standards of Instructions for the Grant of the First Degree

CONTENTS

- 8.1 UGC Letter No. F. 1-117/83(CPP) dated 2.1.1986 to Vice- Chancellors of all Universities regarding Minimum Standards of Instructions for the Grant of First Degree.
- 8.2 UGC Regulations, 1985 regarding the Minimum Standards of Instruction for the Grant of the First Degree through Formal Education.
- 8.3 UGC Regulations, 1985 regarding the Minimum Standards of Instructions for the Grant of the First Degree through Non-formal/Distance Education.
- 8.4 Partial Modifications of UGC Regulations, 1985 regarding the Minimum Standards of Instructions for the Grant of First Degree (UGC Letter No. F.1-117/83(CPP) dated 30th May 1986].



8.1 UGC Letter No. F.1-117/83 (CPP) dated 2.1.1986 to Vice-Chancellors of all Universities regarding Minimum Standards of Instructions for the Grant of First Degree

*University Grants Commission
Bahadurshah Zafar Marg
New Delhi*

R.P. Gangurde
Joint Secretary

D.O. No.F. 1-117/83(CPP)

2.1.1986

Dear Vice-Chancellor,

Kindly refer to notifications No. F. 1-117/83(CPP) dated March 11, 1985 prescribing UGC (Minimum standards of instructions for the grant of first degree through formal and non-formal/distance education in the faculties of Arts, Humanities, Fine Arts, Music, Social Sciences, Commerce and Sciences) Regulations 1985.

The University Grants Commission has since reviewed these regulations with the help of a committee which drafted these regulations and at its meeting held on the 7th October, 1985, the Commission accepted the revised regulations framed under clause (f) of Sub-Section 1 of Section 26 of the UGC Act, 1956. A copy each of the following notifications prescribing 'revised regulations' is sent herewith:-

1. Notification No.F. 1-117/83(CP) dated 25th November, 1985 prescribing the UGC (the minimum standards of instructions for the grant of the first Degree through formal education in the faculties of Arts, Humanities Fine Arts, Music, Social Sciences, Commerce and Sciences) Regulations, 1985.
2. Notification No.F. 1-117/83(CP) dated 25th November, 1985 prescribing the UGC (the minimum standards of instructions for the grant of the first Degree through non-formal/distance education in the faculties of Arts, Humanities, Fine Arts, Music, Social Sciences, Commerce and Sciences) Regulations, 1985.

These notifications are being published in the Gazette of India (Part-III Section 4) and will come into force with effect from June 1, 1986.

I shall be grateful if you will kindly take appropriate action in the matter and acknowledge the receipt of this letter.

Yours Sincerely
(R.P. Gangurde)

Encl: As above



8.2 UGC Regulations. 1985 regarding the Minimum Standards of Instruction for the Grant of the First Degree through Formal Education

University Grants Commission
New Delhi- 110002

25th November 1985

No. F.1-117/83(CP)-

In exercise of the powers conferred by Clause (f) of sub-section (1) of Section 26 of the University Grants Commission Act. 1956 (No. 3 of 1956), the University Grants Commission makes the following regulations namely:-

1. *Short title, application and commencement:*

- (1) These regulations may be called the University Grants Commission (the minimum standards of instructions for the grant of the first degree through formal education in the faculties of Arts, Humanities, Fine Arts, Music, Social Sciences, Commerce and Sciences) Regulations, 1985.
- (2) They shall apply to every university established or incorporated by or under a Central Act, Provincial Act or a State Act, and all institutions recognised under clause (f) of Section 2 of the University Grants Commission Act, 1956 and every Institution deemed to be University under Section 3 of the said Act.
- (3) They shall come into force on June 4, 1986.

2. *Admission/Students:*

- (1) No student shall be eligible for admission to the 1st Degree Course in these faculties unless he has successfully completed 12 years schooling through an examination conducted by a Board/University. The admission shall be made on merit on the basis of criteria notified by the institutions after taking into account the reservation order issued by the government from time to time.
- (2) Student enrolment shall be in accordance with the number of teachers and physical facilities available.
- (3) No student shall be eligible for the award of the first degree unless he has successfully completed a three year course; this degree may be called the B.A./B.Sc./B.Com. (General/Honours/Special) degree as the case may be:

Provided no student shall be eligible to seek admission to the Master's Course in these faculties, who has not successfully pursued the first Degree Course of three years duration.



Provided further that, as a transitory measure where the universities are unable to change over to a three year degree course, they may award a B.A./B.Sc./B.Com. (Pass) degree on successful completion of two year course, but that no student of this stream shall be eligible for admission to the Master's course unless he has undergone further one year bridge course and passed the same. The three year degree course after 10+2 stage should in no case be termed as B.A./B.Sc./B.Com. (Pass) degree.

3. Working days

- (1) Every University enrolling students for the 1st Degree Course shall ensure that the number of actual teaching days does not go below 180 in an academic year.

Explanation:

- (1) The working days shall exclude holidays and vacations, the time set apart for completing normal admission, time required for the preparation and conduct of examinations but shall include the days on which classes such as lectures, tutorials, seminars, practicals etc. are held or conducted.
- (2) The total periods provided in the time-table shall not be less than 40 clock hours a week. The time-table on working days shall be so drawn up that physical facilities are adequately utilized, and not used only for a few hours a day.
- (3) The University shall not only lay down the syllabus for each course but also the manner of its implementation, namely, through number of lectures, tutorials, laboratory sessions, seminars, field work, projects etc. Students shall be encouraged to study some part of the syllabus themselves and shall be given assignment. So as to make them use the library or laboratory etc.
- (4) When a student offers a combination of courses-
 - (i) It shall be ensured that the total weekly workload on the student is not more than 30 clock hours a week, thus enabling him to undertake some study at his own initiative or to prepare his tutorial, seminars etc:
 - (ii) the total work-load on a student shall also be adequate so as to keep him busy;
 - (iii) lectures shall be supplemented by tutorials and/or problem solving session (which shall be around 25% of the lecture work load), term papers etc., so that a student derives maximum benefits from his programme of study.
- (5) Minimum number of lectures, tutorials, seminars, practicals etc. which a student shall be required to attend before eligible for appearing at the examinations shall be as prescribed by the University which on an average shall not be less than 75% of the total number of lectures, tutorials, seminars, practicals etc.

4. *Examination:*

- (1) The University shall adopt the guidelines issued by the University Grants Commission from time to time in regard to the conduct of examination.
- (2) There shall be both continuous sessional evaluation in addition to semester/year-end examinations. The marks or grades obtained in continuous sessional evaluation shall be shown separately in the grade-card alongwith percentile ranking. Each grade card shall indicate the name of the college from which the candidate appeared in the examination. Further more, the University shall develop a dependable system of checks and controls on marks or grades, awarded in sessional work.

Explanations:

Percentile rank refers to the percentage of all the examinees in the course who has the same or higher percentage of marks or grade in the examination.

- (3) The examination question papers shall be framed so as to ensure that no part of the syllabus is left out of study by a student.
- (4) No semester/year end examination shall be held unless the University is satisfied that atleast 75% of the course work indicated under sub-regulation 3(3) has actually been conducted.

5. *Teachers:*

- (1) No teacher shall be appointed who does not fulfil the minimum qualification prescribed for recruitments as per University Grants Commission (Qualifications required of a person to be appointed to the teaching staff of a University or other Institutions affiliated to it Regulations, 1982) notified under Section 26(i) (e) of the University Grants Commission Act, 1956.
- (2) Every teacher shall be available in the Institution on a working day during the period prescribed and shall in addition to participating in teaching as indicated in subregulation 3(3), undertake examination/ test/evaluation/ invigilation work, general assistance to students in removing their academic difficulties, and participate in extra-curricular and institutional support activities as required.
- (3) The work load of a teacher shall take into account teaching, research and extension activities, preparation of lessons, evaluation of assignments, term papers etc. and shall be in accordance with the guidelines issued by the University Grants Commission from time to time.

Provided that the time spent on extension work where it forms an integral part of the course prescribed shall count towards the teaching load.

Provided further that no teacher shall be expected to lecture for more than three clock hours per day.

- (4) The number of full-time and/or part-time teachers shall be provided, keeping in view the total institutional workload as provided in sub-regulation 3(5), teachers workload in sub-regulation 5(3) and class size in sub-regulation 6(1) and 6(2)
- (5) The group for tutorials shall not normally be more than 15 or 20 students.
- (6) A teacher shall not be expected to supervise more than 20-25 students in a laboratory class.

6. *Physical facilities:*

- (1) Every University shall lay down norms in respect of class rooms, laboratories, library, canteen/cafeteria, hostel accommodation etc. and all institutions admitted to its privileges shall adhere to the same. The University while prescribing these facilities as a condition of affiliation shall keep in view the guidelines of the University Grants Commission in this regard.
- (2) The lecture-classes shall normally not exceed 80 students, unless, in special cases, the University has accommodation for larger classes and makes suitable audio-visual arrangements for effective lecturing accompanied by tutorial classes.

Information:

Every University shall furnish to the University Grants Commission information relating to the observance of these Regulations in the form prescribed for the purpose. The information shall be supplied to the University Grants Commission within 60 days of the close of the academic year.



8.3 UGC Regulations, 1985 regarding the Minimum Standards of instructions for the Grant of the First Degree through Non-formal/Distance Education

University Grants Commission
New Delhi-110 002

25th November 1985

No.F-1-117/83(CP) - In exercise of the powers conferred by Clause (f) of sub-section (1) of Section 26 of the University Grants Commission Act, 1956 (No. 3 of 1956), the University Grants Commission makes the following regulations, namely:-

1. *Short title, application and commencement:-*

- (1) These regulations may be called the University Grants Commission (the minimum standards of instructions for the grant of the first degree through non-formal/distance education in the faculties of Arts, Humanities, Fine Arts, Music, Social Sciences, Commerce and Sciences) Regulations, 1985.
- (2) They shall apply to every university established or incorporated by or under a Central Act, Provincial Act or of a Section 2 of the University Grants Commission Act, 1956 and every institution deemed to be University under Section 3 of the said Act.
- (3) They shall come into force on June 1, 1986.

2. *Admission/Students:*

- (1) No student shall be eligible for admission to the 1st Degree Course through non-formal/distance education unless he has successfully completed 12 years schooling through an examination conducted by a Board/University. In case there is no previous academic record, he shall be eligible for admission if he has passed an entrance test conducted by the University provided that he is not below the age of 21 years on July 1 of the year of admission.
- (2) No student shall be eligible for the award of the first degree unless he has successfully completed a three year course; this degree may be called the B.A./B.Sc./B.Com. (General Honours/Special) degree as the case may be.

Provided that no student shall be eligible to seek admission to the Master's Course in these faculties, who has not successfully pursued the first Degree Course of three years duration.

Provided further that, as a transitory measure where the universities are unable to change over to a three year degree course, they may award a B.A./

B.Sc./B.Com. (Pass) degree on successful completion of two year course, but that no student of this stream shall be eligible for admission to the Master's course unless he has undergone a further one year bridge course and passed the same. The three year degree course after 10+2 stage should in no case be termed as B.A./B.Sc./B.Com. (Pass) degree.

3. *Programme of study:*

- (1) Each lesson shall constitute approximately one week's reading and there shall be at least 25 lessons in each main subject of study. The lessons shall be despatched to the student at regular intervals.
- (2) The University shall set up study centres (outside the headquarters) in areas where there is a reasonable concentration of students. Each study centre shall have adequate library facilities (text books, reference materials and lessons and supporting materials). They shall also have qualified part-time instruction/counselling staff to advise and assist the students in the studies and remove individual difficulties.
- (3) A contact programme of 8-10 days shall be organised in different places where there is a reasonably good number of students, to include lectures and discussions in support of the studies. Classes may be arranged on Sundays and other holidays at the headquarters.
- (4) Adequate number of practicals shall be provided in all courses involving such work and if necessary, these may be arranged in the evening, during holidays or vacations in the existing institutions.
- (5) Every student at the under-graduate level shall be required to do at least five home assignments in each subject which shall be made available to him at regular intervals, received back, corrected, graded and returned to the student at regular intervals. The University shall maintain a record of the progress of studies of each student.
- (6) The minimum number of assignments performed by a student for each subject shall be 3 in order to be eligible for appearing in the examination in the concerned subject.

4. *Examination:*

- (1) The University shall adopt the guidelines issued by the University Grants Commission from time to time in regard to the conduct of examinations.
- (2) There shall be home assignments, students response sheets, contact programmes and semester/year end examination. The marks or grades obtained in home assignment and response sheets shall be shown separately in the grade card alongwith percentile ranking. Further more, the University shall develop a dependable system of checks and controls on marks or grades awarded in home assignment and response sheets.



Explanations:

Percentile rank refers to the percentage of all the examinees in the course who had the same or higher percentage of marks or grade in the examination.

- (3) The examination question papers shall be framed so as to ensure that no part of the syllabus is left out of study by a student.
- (4) No Semester/Year-end examination shall be held in a subject unless the University is satisfied that at least 75% of the programme of study indicated under sub-regulations 3, and 3(4) have been actually conducted.

5. *Teachers:*

- (1) No teacher shall be appointed who does not fulfil the minimum qualification prescribed for recruitment as per University Grants Commission (Qualification required of a person to be appointed to the teaching staff of a University or other Institutions affiliated to it Regulations, 1982 notified under Section 26(i) (e) of the University Grants Commission Act, 1956.
- (2) Every teacher shall be available in the Institution on each working day during the period prescribed and shall perform such duties as specified under sub-regulations 5(4) and in addition undertake examination/test/evaluation/invigilation work, general assistance to students in removing their academic difficulties and participate in extra-curricular and institutional support activities as required.
- (3) The work load of a teacher shall take into account teaching research and extension activities, preparation of lessons, evaluation of assignments, term papers etc. and shall be in accordance with the guidelines issued by the University Grants Commission from time to time for non-formal and distance education:

Provided that the time spent on extension work where it forms an integral part of the course prescribed shall count towards the teaching load.

- (4) The workload of a teacher in Distance Education course shall include the following:
 - (i) Preparing, editing writing, revising translating lessons and other reading materials and checking the academic content thereof:
 - (ii) Teaching under personal contact programme as described in sub-regulation 3(3):
 - (iii) Correction of student response sheets:
 - (iv) Maintaining a record of work done by him term-wise and submitting the same to the Institution:
 - (v) Work during vacations to prepare reading materials, reading of proofs, etc.

- (vi) Such other work as may be assigned in connection with teaching or examination.
- (5) The norms of workload for teachers at the undergraduate level shall be as prescribed in the guidelines issued by the University Grants Commission from time to time.
- (6) The number of full-time and part-time teachers shall be provided keeping in view:-
 - (i) Programme of study as provided in sub-regulations 3(1) 3(2) 3(3) 3(4) 3(5), and 3(6).
 - (ii) total institutional work load as provided in sub- regulations 5(1), 5(2) 5(3) 5(4) and 5(5) and
 - (iii) total enrolment of students.

6. *Information:*

Every University providing instruction through non-formal/distance education shall furnish to the University Grants Commission information relating to the observance of these Regulations in the form prescribed for the purpose. The information shall be supplied to the University Grants Commission within 60 days of the close of the academic Year.

S.K. Khanna
Secretary



8.4 Partial Modifications of UGC Regulations, 1985 regarding the Minimum Standards of Instructions for the Grant of First Degree [UGC Letter No. F.1-117/83(CPP) dated 30th May 1986]

University Grants Commission
New Delhi-110 002

30th May 1986

F.1-117/83(CPP) - In partial modification of the Regulations notified under No. F. 1-117/83(CP) dated 25-11-85, published in the Gazette of India (Part III Section 4) dated 14-12-1985, prescribing the UGC (the minimum standards of instructions for the grant of the first degree through formal education in the faculties of Arts, Humanities, Fine Arts, Music, Social Sciences, Commerce and Sciences) Regulations 1985, the following clause shall be inserted below clause 7:-

“8—The University Grants Commission shall have right to grant relaxation to a university in regard to the date of implementation or for admission to the first or second degree courses or to give exemption for a specified period in regard to other clauses in the regulations on the merit of each case”

F.1-117/83(CPP) - In partial modification of the Regulations notified under No. F. 1-117/83(CP) dated 25-11-1985, published in the Gazette of India (Part III Section 4) dated 14-12-1985, prescribing the UGC (the minimum Standards of instruction for the grant of first degree through non-for-mal/distance education in the faculties of Arts, Humanities, Fine Arts, Music, Social Sciences, Commerce, and Sciences) Regulations. 1985, the following clause shall be inserted below clause 6:-

“7 — The University Grants Commission shall have the right to grant relaxation to a university in regard to the date of implementation or for admission to the first or second degree courses or to give exemption for a specified period in regard to other clauses in the regulations on the merit of each case”.

S.K. Khanna
Secretary



9.0 UGC Regulations, 1991 regarding Minimum Qualifications for Appointment of Teachers in Universities and Colleges.

*To be Published in the Gazette of India on 5th Oct. 1991.
Part III Section 4*

University Grants Commission
Bahadur Shah Zafar Marg
New Delhi-110 002.

No.F.1-11/87(CPP)

19th Sept. 1991.

NOTIFICATION

In exercise of the powers conferred by clause (e) of sub-section (1) of Section 26 read with Section 14 of University Grants Commission Act, 1956 (3 of 1956), and in supersession of the Regulations issued under University Grants Commission letter No.F.1-93/74 (CPP) Part (v) dated 13th June, 1983 and Notifications No. 1-93/74(CP) dated 19th February, 1985 and 26th November, 1985, the University Grants Commission hereby makes the following regulations, namely:-,

1. Short Title, application and commencement:

- (i) These regulations may be called the University Grants Commission (Qualifications required of a person to be appointed to the teaching staff of the University and institutions affiliated to it) Regulations, 1991.
- (ii) They shall apply to every University established or incorporated by or under a central Act, Provincial Act or a State Act, every institution including a constituent or an affiliated college recognised by the Commission, in consultation with the University concerned under Clause (f) of Section 2 of the University Grants Commission Act, 1956 and every institutions deemed to be a University under Section 3 of the said Act.
- (iii) They shall come into force with immediate effect.

2. Qualifications:

No person shall be appointed to a teaching post in university or in any of institutions including constituent or affiliated colleges recognised under clause (f) of Section 2 of the University Grants Commission Act, 1956 or in an institution deemed to be a University under Section 3 of the said Act in a subject if he does not fulfil the requirements as to the qualifications for the appropriate subjects as provided in the Schedule 1.

Provided that any relaxation in the prescribed qualifications can only be made by a University in regard to the posts under it or any of the institutions including constituent or affiliated colleges recognised under clause (f) of Section 2 of the aforesaid Act or by an institution deemed to be a university under Section 3 of the said Act with the prior approval of the University Grants Commission.

Provided further that these regulations shall not be applicable to such cases where selections through duty constituted selection committees for making appointments to the teaching posts have been made prior to the enforcement of these regulations.

3. Consequences of failure of Universities to comply with recommendations of the Commission; as per provisions of Section 14 of the University Grants Commission Act, 1956:

If any University Grants affiliation in respect of any course of study to any college referred to in sub-section (5) of Section 12-A in contravention of the provisions of that sub-section fails within a reasonable time to comply with any recommendations made by the Commission under Section 12 or Section 13, or contravenes the provisions of any rule made under clause (f) of clause (c) of sub-section (2) of Section 25 or of any regulations made under clause (c) or clause (f) or clause (g) of section 26, the Commission after taking into consideration the clause, if any, shown by the University for such failure or contravention, may withhold from the University, the grants proposed to be made out of the Fund of the Commission.

Sd/-
(Y.N. Chaturvedi)
Secretary

To

The Manager,
Govt. of India Press,
Faridabad.



SCHEDULE - I

Minimum qualifications for the posts of Professors, Readers and Lecturers in Subjects other than Fine Arts, Management, Engineering and Technology in Universities or Colleges for appointment of persons through open advertisement and for promotion of persons as Reader and placement in Selection Grade Lecturer and Senior Scale Lecturer.

(1) **Professor**

An eminent scholar with published work of high quality actively engaged in research with 10 years of experience in postgraduate teaching and/or research at the University/National Level institutions, including experience or guiding research at doctoral level.

OR

An outstanding scholar with established reputation who has made significant contribution to knowledge.

(2) A **Reader (Open Selection)**

Good academic record with a doctoral degree or equivalent published work. Candidated from outside the university system in addition shall also possess at least 55% marks or an equivalent grade at the Master's degree level.

Eight years experience of teaching and/or research including upto 3 years for research degrees and has made some mark in the areas of scholarship as evidenced by quality or publications, contribution to educational renovation, design of new courses and curricula.

(2) B **Reader (Promotion)**

- (a) As regards the promotion to the post of Reader in accordance with the scheme of revision of scales of pay of teachers in Universities and Colleges notified by the Government of India vide Notification No.F.1-21/87:u:i dated the 22nd July, 1988, the guidelines are circulated by the University Grants Commission vide its letter No.F.1-6/90 (P.S.Cell) dated the 29th January, 1990.
- (b) Every Lecturer in the Senior Scale will be eligible for promotion to the post of Reader if he/she has:
 - (i) Completed 8 years of service in the Senior Scale, provided that the requirement of 8 years will be relaxed if the total service of the lecturer is not less than 16 years;
 - (ii) Obtained a Ph.D. degree or an equivalent published work;
 - (iii) Made some mark in the areas of scholarship and research as evidenced by self-assessment, reports of referees, quality of publications, contribution to educational renovation, design of new courses and curricula.
 - (iv) Participated in two refresher courses/summer institute of approved

- duration, or engaged in other appropriate continuing education programmes of comparable quality as may be specified by the UGC after placement in the Senior Scale; and
- (v) consistently good performance appraisal reports.
 - (c) Promotion to the Post of Reader will be through a process of selection by a Selection Committee to be set up under the statutes/Ordinances of the University concerned or other similar Committees set up by the appointing authorities.

(2) C**Lecturer (Selection Grade)**

Lecturers in the Senior Scale who do not have Ph.D, degree or equivalent published work and who do not meet the scholarship and research standards, but fulfil the other criteria prescribed in (2) B(b) above to the post of Reader and have a good record in teaching and/or participation in extension activities, will be placed in the Selection Grade subject to the recommendations of the Selection Committee for promotion to the post of Reader. They will be designated as Lecturers in the Selection Grade. They could offer themselves for fresh assessment after obtaining Ph.D. and/or fulfilling other requirements for promotion as-Readers, and if found suitable, could be given the designation of Reader.

(3) A**Lecturer**

- (a) *Arts, Sciences, Social Sciences, Commerce, Education, Physical Education, Foreign Language and Law.*

Good academic record with atleast 55% marks or an equivalent grade at Master's degree level in the relevant subject from an Indian University or an equivalent degree from a foreign University.

Candidates besides fulfilling the above qualifications should have cleared the eligibility test for lecturers conducted by UGC, CSIR or similar test accredited by the UGC.

- (b) *Journalism and Mass Communication*

Good academic record with atleast 55% marks or an equivalent grade at Master's degree level in communication/mass communication, journalism from an Indian University or an equivalent degree from a foreign University.

Candidates besides fulfilling the above qualifications should have cleared the eligibility test for lecturers conducted by UGC, CSIR or similar test accredited by the UGC.

OR

Atleast 55% marks or an equivalent grade at Master's degree level in Social Sciences/Science/Humanities with atleast second class bachelor's degree or Post-graduate diploma in communication/mass communication or journalism from a recognised Indian University/ National Institute.

**10. List of Degrees specified for the Purposes of
Section 22 of the University Grants
Commission Act, 1956**

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University Grants Commission

No-F.87-9/58 (CUP)

1st December, 1958

NOTIFICATION

In exercise of the powers conferred by Sub-Section (3) of Section 22 of the University Grants Commission Act, 1956 (3 of 1956) the University Grants Commission with the approval of the Central Government hereby specifies the following degrees for the purposes of the said section, namely:

LIST OF DEGREES FOR THE PURPOSES OF SECTION 22 OF THE UNIVERSITY GRANTS COMMISSION ACT, 1956

Bachelor's Degree	Master's Degree	Doctorate Degree
1. Bachelor of Arts (B.A.)	1. Master of Arts (M.A.)	1. Doctorate of letters or Doctor of Literature (D.Litt. or Litt. D.)
2. Bachelor of Commerce (B.Com.)	2. Master of Commerce (M.Com.)	2. Doctor of Philosophy (Ph.D. or D.Phil.)
3. Bachelor of Education (B.Ed.)	3. Master of Education (M.Ed.)	3. Doctor of Oriental Learning (DOL)
4. Bachelor of Training (B.T.)	4. Master of Oriental Learning (M.O.L.)	4. Doctor of Laws (LL.D.)
5. Bachelor of Oriental Learning (B.O.L.)	5. Master of Laws (M.L.)	5. Doctor of Law (D.L.)
6. Bachelor of Literature (B.Litt.)	6. Master of Law or Laws (LL.M.)	6. Doctor of Science (D.Sc. or Sc.D.)
7. Bachelor of Law or Laws (B.L.)	7. Master of Letters or Master of Literature (M.Litt.)	7. Doctor of Medicine (M.D.)
8. Bachelor of Law or Laws (LL.B.)	8. Master of Philosophy (M.Phil.)	8. Doctor of Hygiene (D.HV.)

UGC Notification dated 1st December 1958 (contd.)

Bachelor's Degree	Master's Degree	Doctorate Degree
9. Bachelor of Civil Law (B.C.L.)	9. Master of Indology (M.Ind.)	
10. Bachelor of Music (B.Mus.)	10. Master of Social Work (M.S.W.)	
11. Bachelor of Science (B.Sc.)	11. Master of Business Administration (M.B.A.)	
12. Bachelor of Technology (B.Tech.)	12. Master of Music (M.Mus.)	
13. Bachelor of Textiles (B.Text.)	13. Master of Library Science (M.Lib.Sc.)	
14. Bachelor of Architecture (B.Arch.)	14. Master of Science (M.Sc.)	
15. Bachelor of Agriculture (B.Agri.)	15. Master of Technology (M.Tech.)	
16. Bachelor of Mechanical Engineering (B.M.E.)	16. Master of Engineering (M.E.)	
17. Bachelor of Electrical Engineering (B.E.E.)	17. Master of Electrical Engineering (M.E.E.)	
18. Bachelor of Chemical Engineering (B.Ch.E.)	18. Master of Mechanical Engineering (M.E.E.)	
19. Bachelor of Tele-Communication Engineering (B.Tel.E.)	19. Master of Chemical Engineering (M.Ch.E.)	
20. Bachelor of Civil Engineering (B.C.E.)	20. Master of Textiles (M.Text)	
21. Bachelor of Engineering (B.E.)	21. Master of Veterinary Science (M.V.Sc.)	
22. Bachelor of Chemical Technology (B.Chem.Tech.)	22. Master of Planning (M.Plan.)	
23. Bachelor of Veterinary Science (B.V.Sc.)	23. Master of Architecture (M.Arch.)	

UGC Notification dated 1st December 1958 (contd.)

Bachelor's Degree	Master's Degree	Doctorate Degree
24. Bachelor of Veterinary Science & Animal Husbandry (B.V.Sc. & A.H.)	24. Master of Surgery (M.S.)	
25. Bachelor of Dental Surgery (B.D.S.)	25. Master of Pharmacy (M.Pharm.)	
26. Bachelor of Nursing (B.Nurs.)	26. Master of Obstetrics or Master of Obstetrics and Gynecology (M.O.)	
27. Bachelor of Medicine & Bachelor of Surgery (M.B.B.S. or M.B. & B.S.)		
28. Bachelor of Pharmacy (B.Pharm.)		
29. Ayurvedacharya, Bachelor of Medicine & Surgery (A.M.B.S.)		
30. Bachelor of Medicine & Bachelor of Surgery (B.M.B.S.)		
31. Bachelor of Ayurvedic Medicine (B.A.M.)		
32. Bachelor of Ayurvedic Medicine and Surgery (B.A.M.)		
33. Bachelor of Ayurvedic Medicine and Surgery (B.A.M. & S.)		
34. Bachelor of Sanitary Science (B.S.Sc.)		
35. Bachelor of Indian Medicine (B.I.M.)		

Sd/-
S. Mathai
Secretary

University Grants Commission

NOTIFICATION

No.F.33-72/59(CUP)

New Delhi, the 17 Nov. 1960

In exercise of the powers conferred by Sub- Section (3) of Section 22 of the University Grants Commission Act, 1956 (3 of 1956) and in continuation of Gazette Notification No. F.87-9/58 (CUP) dated the 1st December, 1958, the University Grants Commission with the approval of the Central Government hereby specifies the following additional degrees for the purposes of the said section.

Master's Degree

27. Master in Statistics (M. Stat.)

Doctorate Degree

9. Doctor of Music (D.Mus.)
10. Doctor of Education (D.Ed.)
11. Doctor of Engineering (D.Eng.)

Sd/-
S. Mathai
Secretary



University Grants Commission

Bahadur Shah Zafar Marg (Mathura Road)
New Delhi

No.F.33-87/63(CUP)

6th June, 1964

NOTIFICATION

In exercise of the powers conferred by Sub-Section (3) of Section 22 of the University Grants Commission Act, 1956 (3 of 1956) and in continuation of Gazette Notification No.F.87-9/58 (CUP) dated 1.12.58 and F.33-72/59 (CUP) dated 17.11.60, the University Grants Commission with the approval of the Central Government hereby specifies the following additional degrees for the purposes of the said section:

Master's Degree

1. Magister Chirurgiae (M.Ch).

Doctorate Degree

1. Doctor of Medicine (in Cardiology) (D.M.)

Sd/-
K.L.JOSHI
Secretary

University Grants Commission

No.F.33-87/63(CDN)

27th April, 1966

NOTIFICATION

In exercise of the powers conferred by Sub-Section (3) of Section 22 of the UGC Act, 1956 (3 of 1956) and in continuation of Gazette notifications No.F.87-92/58 (CUPI dated 1.12.58 F.33-72/59 (CUP) dated 17.11.1960, and F.33-87/63 (CUP) dated 6.6.64 the University Grants Commission with the approval of the Central Government hereby specifies the following additional degrees for the purposes of the said section:

Master's Degree

1. Master of Physical Education (M.P.E.)

Bachelor's Degree

1. Bachelor of Physical Education (B.P.E.)

Sd/-
K.L. Joshi
Secretary



University Grants Commission

Bahadur Shah Zafar Marg
New Delhi

No.F.1-59/66(CDN)

18th June, 1968

NOTIFICATION

In exercise of the powers conferred by Sub-Section (3) of Section 22 of the U.G.C. Act, 1956 (3 of 1956) and in continuation of Gazette Notification No.87-92/58 (CUP) dated 1.12.58, F.33-72/59 (CUP) dated 17.11.1960, F.33-87/63 (CUP) dated 6.6.1964 and F.33-87/63 (CUP) dated 27.4.1966, the University Grants Commission with the approval of the Central Government hereby specifies the following additional degrees for the purposes of the said section:

1. Shastri (Varanaseya Sanskrit Vishwavidyalaya)
2. Siksha Shastri (Varanaseya Sanskrit Vishwavidyalaya)
3. Granthalaya Vigyan Shastri (Varanaseya Sanskrit Vishwavidyalaya)
4. Ayurvedacharya (Varanaseya Sanskrit Vishwavidyalaya)
5. Vidya Varidhi (Varanaseya Sanskrit Vishwavidyalaya)
6. Vachaspati (Varanaseya Sanskrit Vishwavidyalaya)
7. Acharya (Varanaseya Sanskrit Vishwavidyalaya)

Sd/-
P.J. Philip
Secretary



University Grants Commission

Bahadur Shah Zafar Marg
New Delhi

No.F.1-59/66(CD)

17th February, 1969

NOTIFICATION

In exercise of the powers conferred by Sub-Section (3) of Section 22 of the UGC Act, 1956 (3 of 1956) and in continuation of Gazette Notification No.F.87-92/58 (CUP) dated 1.12.58 F.33-72/59 (CUP) dated 17.11.1960, F.33-87/63 (CUP) dated 6.6.64, F.33-87/63 (CUP) dated 27.4.1966 and F.1-59-66 (CDN) dated 18.6.1968, the University Grants Commission with the approval of the Central Government hereby specifies the following additional degrees for the purposes of the said Section:

Bachelor's Degrees

- (i) Alankar (Gurukul Kangri Vishwavidyalaya)
- (ii) Samaj Vidya Visharad (Gujarat Vidyapeeth)
- (iii) Shikshan Visharad (Gujarat Vidyapeeth)
- (iv) Hindi Shiksha Visharad (Gujarat Vidyapeeth)

Master's Degree

- (i) Parangat (Gujarat Vidyapeeth)

Doctorate Degree

- (i) Doctor of Ayurvedic Medicine (D.Ay-M)
(Banaras Hindu University)

Sd/-
P.J. Philip
Secretary



University Grants Commission

Bahadur Shah Zafar Marg
New Delhi

No.F.1-59/66(CDN)

22nd December, 1969

NOTIFICATION

In exercise of the powers conferred by Sub-Section (3) of Section 22 of the UGC Act, 1956 (3 of 1956) and in continuation of Gazette Notification No.F.87-92/58 (CUP) dated 1.12.58 F.33-72/59(CUP) dated 17.11.1960, F.33-87/63(CUP) dated 6.6.1964, F.33-87/63 (CUP) dated 27.4.1966, F.1-59/66 (CDN) dated 18.6.1968, and F.1-59/66 (CD) dated 17.2.1969, the University Grants Commission with the approval of the Central Government hereby specifies the following additional degrees for the purposes of the said section:

Bachelor's Degree:

Bachelor of General Laws (B.G.L.)

Sd/-
(R.K. Chhabra)
Joint Secretary



University Grants Commission

Bahadur Shah Zafar Marg
New Delhi

No.F.1-59/66(CDN)

26th February, 1971

NOTIFICATION

In exercise of the powers conferred by Sub-Section (3) of Section 22 of the UGC Act, 1956 (3 of 1956) and in continuation of Gazette Notification No.F.87-92/58 (CUP) dated 1.12.1958 F.33-72/59 (CUP) dated 17.11.1960, F.33-87/63 (CUP) dated 6.6.1964 and F.33-87/63 (CUP) dated 27.4.1966, F.1-59/66 (CDN) dated 18.6.1968, and F.1-59/66 (CDN) dated 22.12.1969, the University Grants Commission with the approval of the Central Government hereby specifies the following additional degrees for the purposes of the said Section:

Master's Degree

1. Master of Ayurved in Medicine and Surgery, (M.S.A.M.)

Bachelor's Degree

1. Bachelor of Ayurved in Pharmacy (B.Pharm (Ayu.))
2. Bachelor of Ayurved in Naturopathy (B.Nat. (Ayu.))
3. Vidya Praveena (Andhra University)
4. Bhasha Praveena (Andhra University)
5. Bachelor of Library Science
6. Bachelor of Fisheries Science (B.F.Sc.)

Sd/-
(R.K. Chhabra)
Secretary



University Grants Commission

Bahadur Shah Zafar Marg
New Delhi

No.F.1-59/66(CDN)

15.11.1973

NOTIFICATION

In exercise of the powers conferred by Sub-Section (3) of Section 22 of the UGC Act, 1956 (3 of 1956) as modified upto 17th June, 1972 and in continuation of Gazette Notification No.F.87-92/58 (CUP) dated 1.12.58 F.33-72/59 (CUP) dated 17.11.1960, F.1-59/66 (CDN) dated 18.6.1968, F.1-59/66 (CDN) dated 17.2.1969, F.1-59/66 (CDN) dated 22.12.1969 and F.1-59/66 (CDN) dated 26.2.1971, the University Grants Commission with the approval of the Central Government hereby specifies the following additional degrees for the purposes of the said section:

Master's degree

1. Samaj Vidya Parangat (Gujarat Vidyapeeth)
2. Samaj Karya Parangat (Gujarat Vidyapeeth)
3. Shikshan Parangat (Gujarat Vidyapeeth)

Doctorate degree

1. Vidya Vachaspati (Gujarat Vidyapeeth)

Sd/-
(R.K. Chhabra)
Secretary



University Grants Commission

Bahadur Shah Zafar Marg
New Delhi

No.F.1-59/66(CDN)

18th July, 1975

NOTIFICATION

In exercise of the powers conferred by Sub-Section (3) of Section 22 of the UGC Act, 1956 (3 of 1956) as modified upto 17th June, 1972 and in continuation of Gazette Notification No.F.87-92/58 (CUP) dated 1.12.58 F.33-72/59 (CUP) dated 17.11.1960, F.33-87/63 (CUP) dated 6.6.1964, P.33-87/69 (CUP) dated 27.4.1966 and F.1-59/66 (CDN) dated 18.6.1968, F.1-59/66 (CDN) dated 17.2.1969, F.1-59/66 (CDN) dated 22.12.1969, F.1-59/66 (CDN) dated 26.2.1971 F.1-59/66 (CDN) date 15.11.1973, the University Grants Commission with the approval of the Central Government hereby specifies the following additional degrees for the purposes of the said Section:

Master's Degree:

Master of Dance (M.Dance)

Indira Kala Sangeet
Vishwavidyalaya.
Khairagarh.

Bachelor's Degree

Bachelor of Dance (B.Dance)

Indira Kala Sangeet
Vishwavidyalaya,
Khairagarh.

Sd/-
(R.K. Chhabra)
Secretary



11.0 UGC (Fitness of Health Sciences and Medical Universities for receiving Grants) Rules, 1996

(To be Published in the Gazette of India Part-II, Section 3, Sub-Section (i))

GOVERNMENT OF INDIA
Ministry of Human Resource Development
(Department of Education)
New Delhi

Dated :19.2.1996

NOTIFICATION

G.S.R.

In exercise of the powers conferred by Section 25, read with Section 12B, of the University Grants Commission Act, 1956 (3 of 1996), the Central Government hereby makes the following rules, namely:-

1. Short title, application and Commencement:-

- (1) These rules may be called the University Grants Commission (Fitness of Health Sciences and Medical Universities for receiving grants) Rules, 1996.
- (2) They shall apply to every Health Science and Medical University established after the 17th day of June, 1972.
- (3) They shall come into force on the date of their publication in the Official Gazette.

2. Definitions: In these rules, unless the context otherwise requires:-

- (a) "allied sciences" includes such sciences which are primarily supportive in nature to the medical and nursing professions;
- (b) "Health Sciences and Medical University" means a University which provides for teaching, research or extension programmes in any branch or branches of medical, dental and allied sciences of any system of medicine and for the advancement of learning and dissemination of knowledge in such branch or branches;
- (c) Words and expressions used herein and not defined but defined in the University Grants Commission Act, 1956 (3 of 1956) shall have the respective meanings assigned to them in that Act.

3. Fitness of Health Sciences and Medical University to receive grant:- No Health Sciences and Medical University to which these rules shall apply, shall be declared to be fit to receive any grant from the Central Government, the Commission or any other Organisation receiving any funds from the

Central Government unless the Commission is satisfied in respect of the following matters, namely:-

- (a) that there has been a need to set up such a Health Science and Medical University, and that the other existing universities in the states cannot effectively meet the requirements and systematic development of medical and allied sciences through their programmes of teaching, research and extension either through departments or colleges directly maintained by and/or affiliated to it;
- (b) that it has adequate facilities for postgraduate teaching, research and extensions programmes;
- (c) that it provides adequate linkage with the respective professions, health care delivery systems and industry, as may be appropriate;
- (d) that it provides courses of extension and devotes attention to national and regional development;
- (e) that the State Government ensures provision of adequate basic facilities in respect of scientific staff, supporting staff, buildings, equipment, laboratories, library, hostels, staff quarters, playgrounds and the like, as may be determined in consultation with the concerned professional council.
- (f) that in the law under which such a university has been established, due weightage has been given to the recommendations made by:-
 - (i) the Education Commission (1964-66) constituted by a Resolution of the Government of India;
 - (ii) the Health Survey Planning Committee (Mudaliar Committee) 1959-61;
 - (iii) the Medical Education Review Committee (Shantilal Mehta Committee) 1981-83;
 - (iv) the guidelines and/or recommendations of the committee appointed by the Commission on the governance of Universities;
 - (v) the State Government concerned with the University has accepted the principle of integration of teaching, research and extension in the broad areas of medicine and allied Sciences;
- (g) that to facilitate co-ordination between the Health Sciences and Medical University and the concerned departments of the State Government on the one hand and the Commission, Government of India, Medical Council of India and the Indian Council of Medical Research on the other hand, an apex body at the State level has been set up by the, State Government consisting of the representatives of the University, the State Government, Government of India, the Commission, the Medical Council of India, the Indian Council of Medical Research and experts.;
- (h) that it has necessary facilities to provide for teaching, research and extension in the subjects related to medicine and allied sciences including Environmental Sciences, Social and Behavioural Sciences in relation to medicine, Bio-engineering, Dental (stomatology), Pharmaceutical Sciences, Continuing Medical Education, Medical Education, Health Manpower development and Health Administration keeping in view the existing and emerging requirements of the State;
- (i) that it provides for integration of teaching, research and extension

education in each of the departments and ensures the provision of the minimum staff required for undergraduate and postgraduate education, research and extension education in accordance with the recommendation of the Medical Council of India and the Indian Council of Medical Research and that the State Government ensures the continued provision of adequate recurring grants to the University for maintenance of its activities of teaching, research and extension.

Sd/-
(ABHIMANYU SINGH)
Joint Secretary to the Govt. of India

To

The Manager,
Government of India Press,
Ring Road, New Delhi

F.No.4-46191-U.I

